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**Probate Calendar for Tuesday September 1, 2026
9:00 a.m. in Department 4, with Judge Tana L. Coates Presiding**

No.	Case Number	Case Name	Type of Matter	Probate Notes
<u>The following matters are OFF CALENDAR, DISMISSED, DENIED OR CONTINUED:</u>				
12	24PR-0160	Estate of: Robert Walters	Petition Filed 2/27/2026 – Final Distribution Waiver Account	CONTINUED LIST. <i>The Petition is continued to December 1, 2026 at 9:00 a.m. in D-4. All additional items must be filed by November 3, 2026. The following is noted:</i> 1. <i>Item 6 of the Petition is incomplete. One of the boxes must be checked.</i> 2. <i>Item 16 of the Petition indicates that no creditor's claims were filed with the Court. A creditor's claim was filed on September 6, 2024 by Action Professionals for \$19,871.55. It does not appear that the estate is in a position to close until this creditor's claim is resolved. Mandatory Judicial Council Form DE-174 Allowance or Rejection of Creditor Claim is required.</i> 3. <i>Item 23 of the Petition requests compensation to the attorney for extraordinary services to the estate as described in attachment 23b in the amount of \$2,478.00. The services described in the attachment do not appear to be extraordinary services based on the examples provided by California Rules of Court,</i>

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				<i>rule 7.703(c). The items listed in the attachment appear to be costs advanced by the attorney. Nevertheless, if counsel claims the items described are extraordinary services, a declaration is required outlining a detailed description of services provided, hours expended, the results achieved and the benefit to the estate (Cal. Rules of Court, rule 7.702.) Additionally, the total fees listed on the attachment is \$1,697.09. It is unclear how the amount requested of \$2,478.00 was determined.</i> <i>4. More information is needed regarding the request for \$3,000.00 to be reserved for closing expenses.</i> <i>5. Item 27 of the Petition indicates that the property of the estate is now comprised of cash only. All property that was listed on the Inventory and Appraisal must be listed as to whether there was a gain or loss, even when an account is waived. This is needed in order to calculate accurate statutory fees. (Cal. Rules of Ct., rule 7.550, subd. (b)(6).) A supplement is needed.</i> <i>6. <u>Statutory Fee Calculation.</u> Schedules were not provided. These schedules are required even when an accounting is waived. Please see California Rules of Court, rule 7.550. A copy of detailed schedules are needed for review. The Statutory Fee cannot be confirmed until the information is provided. It is unclear how the total estate value has not changed based on the information provided in the Petition.</i> <i>7. A proposed order is needed.</i>

No.	Case Number	Case Name	Type of Matter	Probate Notes
17	25PR-0028	Estate of: Franklin Wakefield, III	Petition Filed 2/25/26 – Final Distribution Waiver Account	CONTINUED LIST. <i>The Petition is continued to December 8, 2026 at 9:00 a.m. in D-4. All additional items must be filed by November 10, 2026. The following is noted:</i> 1. <i>Notice was not given in compliance with Probate Code section 11601 and California Rules of Court, rule 7.51. Notice was not given to each known beneficiary whose interest in the estate would be affected by the petition, specifically the underlying beneficiaries of the Trust. The Petitioner is the Trustee. (Probate Code §§ 1208, 11601.) Either notice using Judicial Council form DE-120, or waivers of notice are acceptable.</i> 2. <i>More information is needed regarding the request for \$20,000 to be reserved for taxes, tax preparation fees, and closing expenses.</i> 3. <i>Item 27 of the Petition does not indicate the total value of each of the accounts on hand. A Supplement is needed.</i> 4. <i>A consent to accept property from the Trustee of the beneficiary trust is needed. (Superior Court, San Luis Obispo County Local Rule, rule 11.1105.)</i> 5. <i>Petitioner has requested costs of \$2,849.85 be allowed to counsel but costs are not included in the prayer of the Petition. It is recommended the Court grant costs to counsel in the amount of \$2,849.85.</i> 6. <i>A proposed order is needed.</i>
23	26PR-0030	Estate of: Joyce Gavin	Petition [DUE: 8/4/26] Filed 1/23/2026-	CONTINUED LIST. <i>The Petition is continued to December 15, 2026 at 9:01 am. in D-4. All additional items must be filed by November 17, 2026. The following is noted:</i>